

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2085

By: Blair

AS INTRODUCED

An Act relating to professions and occupations;
amending 59 O.S. 2021, Section 1000.20, which relates
to applicability of the Oklahoma Uniform Building
Code Commission Act; modifying applicability;
amending 59 O.S. 2021, Section 1000.21, which relates
to membership; modifying membership requirements;
amending 59 O.S. 2021, Section 1000.23, which relates
to powers and duties of the Commission; modifying
terms; modifying powers and duties to establish
continuing education; establishing procedures to
increase code official development; amending 59 O.S.
2021, Section 1000.25, which relates to fees;
modifying terms; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1000.20, is
amended to read as follows:

Section 1000.20. Sections 1000.20 through ~~1000.29~~ 1000.30 of
this title shall be known and may be cited as the "Oklahoma Uniform
Building Code Commission Act".

SECTION 2. AMENDATORY 59 O.S. 2021, Section 1000.21, is
amended to read as follows:

1 Section 1000.21. A. 1. There is hereby created the Oklahoma
2 Uniform Building Code Commission ~~within the Construction Industries~~
3 ~~Board~~ which shall consist of thirteen (13) members, eleven of whom
4 shall be appointed by the Governor with the advice and consent of
5 the Senate as follows:

6 a. one member who is a general contractor from a
7 statewide organization that represents residential
8 construction,

9 b. one member who is a general contractor from a
10 statewide organization that represents commercial
11 construction,

12 c. one member who is a contractor from a statewide
13 organization that represents electrical contractors,

14 d. one member who is a contractor from a statewide
15 organization that represents plumbing contractors,

16 e. one member who is a contractor from a statewide
17 organization that represents heating and cooling
18 contractors,

19 f. one member who is a licensed electrical engineer from
20 a state-recognized professional engineering firm,

21 g. one member who is a local-level regulator/inspector
22 who is a member of a statewide organization that is
23 exempt from taxation under federal law and designated
24 pursuant to the provisions of the Internal Revenue

1 Code, 26 U.S.C., Section 170(a), who has represented
2 municipalities and had statutory functions for
3 municipalities for at least ~~fifteen (15)~~ ten (10)
4 years prior to November 1, 2005,

5 h. one member who is a Certified Building Official
6 employed by a political subdivision,

7 i. one member who is a licensed architect from a
8 statewide organization that represents architects,

9 j. one member who is from the insurance industry with
10 knowledge of building codes and experience in property
11 loss mitigation, and

12 k. one member who is a licensed mechanical engineer from
13 a state-recognized professional engineering firm.

14 2. The members shall be appointed for staggered terms of four
15 (4) years. The initial appointment of the members added by this act
16 shall be made within ninety (90) days of the effective date of this
17 act. A full term of office for purposes of determining term limits
18 provided in subsection C of this section shall be the completion of
19 a full four-year term of appointment.

20 B. The remaining two members of the Commission shall be the
21 State Fire Marshal, or a designee, and an appointee of the
22 Construction Industries Board.

23 C. Appointed members shall continue in office until a successor
24 is appointed by the Governor, notwithstanding the term limitations.

1 No appointed member shall serve more than two consecutive full four-
2 year terms; provided, such a member shall be eligible to serve until
3 a successor is appointed, and such member may be reappointed after a
4 two-year absence from the Commission. The Governor shall fill all
5 vacancies and unexpired terms in the same manner as the original
6 appointment of the member whose position is to be filled. No
7 initial appointment to a term of less than four (4) years or any
8 partial-term appointment to fill a vacancy or unexpired term of
9 another member shall be counted for purposes of determining term
10 limits. An appointed member may be removed by the Governor for
11 cause.

12 D. Whenever a member of the Commission is absent from more than
13 one-half (1/2) of all meetings of the governing body, regular and
14 special, held within any period of twelve (12) consecutive months,
15 the member shall thereupon cease to hold office by operation of law.

16 SECTION 3. AMENDATORY 59 O.S. 2021, Section 1000.23, is
17 amended to read as follows:

18 Section 1000.23. A. The Oklahoma Uniform Building Code
19 Commission shall have the power and the duty to review and adopt all
20 ~~building~~ codes and standards for residential and commercial
21 construction to be used by all entities within this state. Codes
22 and standards adopted by the Commission shall be the minimum
23 standards for residential and commercial construction in this state.

24

1 B. All public projects shall abide by such minimum standards
2 and requirements; provided, nothing in the Oklahoma Uniform Building
3 Code Commission Act shall prevent or take away from state agencies
4 the authority to enact and enforce requirements containing higher
5 standards and requirements than such minimum standards and
6 requirements.

7 C. Municipalities and other political subdivisions shall abide
8 by such minimum standards and requirements; provided, nothing in the
9 Oklahoma Uniform Building Code Commission Act shall prevent or take
10 away from such municipalities and other political subdivisions the
11 authority to enact and enforce requirements containing higher
12 standards and requirements than such minimum standards and
13 requirements.

14 D. The Oklahoma Uniform Building Code Commission shall have the
15 power and duty to establish a regional continuing education and
16 training and certification process for all residential and
17 commercial ~~building~~ construction industry personnel affected by the
18 codes adopted by the Commission, including, but not limited to, code
19 ~~inspectors~~ officials, design professionals, and trade workers. The
20 Commission shall establish regional training for the ~~purpose~~
21 purposes of training ~~the county and municipal inspectors in the~~
22 ~~Uniform Building Code~~ code officials, design professionals, and
23 building trade workers, in the construction codes under the purview
24 of this Commission. The regional training shall be offered at no

1 cost to ~~the participant~~ state licensed building code officials and
2 shall be funded from the funds received pursuant to Section 1000.25
3 of this title. A fee may be assessed to all participants other than
4 state licensed code officials. The fee, when assessed, shall be
5 limited to any cost directly associated with the training and shall
6 be remitted to the State Treasury pursuant to the Oklahoma Uniform
7 Building Code Commission Act. Each ~~inspector~~ code official
8 operating in this state on behalf of any state agency or any
9 municipal or county office may complete regional training and be
10 issued a ~~certification for inspections~~ certificate of completion by
11 the Uniform Building Code Commission ~~on and after January 1, 2015.~~
12 The training and certification applications, qualifications and
13 procedures shall be promulgated by rules of the Commission. The
14 Commission may establish forms and procedures to implement and
15 administer the provisions of this section.

16 E. The Commission shall establish a workforce development
17 process with the purpose of increasing the number of available code
18 officials in Oklahoma. The workforce development applications,
19 qualifications, and procedures shall be promulgated by rules of the
20 Commission. The Commission may establish forms and procedures to
21 implement and administer the provisions of this section.

22 SECTION 4. AMENDATORY 59 O.S. 2021, Section 1000.25, is
23 amended to read as follows:
24

1 Section 1000.25. A. The Oklahoma Uniform Building Code
2 Commission shall establish a system of fees to be charged for the
3 issuance and renewal of any construction permits issued by any
4 agency, municipality, or other political subdivision of this state.

5 B. This provision is subject to the following limitations:

6 1. No schedule of fees may be established or amended by the
7 Commission except during such times as the Legislature is in
8 session; provided, the Commission may establish or amend a schedule
9 of fees at a time when the Legislature is not in session if the fees
10 or schedule of fees has been specifically authorized by the
11 Legislature pursuant to paragraphs 2 and 3 of this subsection. The
12 Commission must follow the procedures required by Article I of the
13 Administrative Procedures Act for adoption of rules in establishing
14 or amending any such schedule of fees;

15 2. The Commission shall charge fees for ~~building~~ construction
16 permits and renewal of such permits issued by any state agency,
17 municipality, or other political subdivision of this state which
18 authorized work governed by codes within the purview of the
19 Commission only within the following ranges:

20 For issuance of permit not to exceed \$5.00

21 For renewal of permit not to exceed \$5.00

22 Fees shall be remitted to the Oklahoma Uniform Building Code
23 Commission within thirty (30) days after the end of the preceding
24 calendar month. The Oklahoma Uniform Building Code Commission shall

1 report to the Governor, President Pro Tempore of the Senate and the
2 Speaker of the House semiannually its collections for the six (6)
3 months preceding the report;

4 3. Fees shall be collected by any state agency, municipality or
5 other political subdivision issuing construction permits within this
6 state. The fees shall be deposited in an account created by the
7 collecting entity for that purpose;

8 4. The state agency, municipality or other political
9 subdivision shall remit the monies in the account on a monthly basis
10 directly to the State Treasury for deposit in the Oklahoma Uniform
11 Building Code Commission Revolving Fund created pursuant to Section
12 1000.28 of this title. Along with the deposits required by this
13 paragraph, each state agency, municipality or other political
14 subdivision shall also submit a report stating the total amount of
15 funds collected and the total number of fees imposed during the
16 preceding month. The report shall be made on computerized or manual
17 disposition reports as provided by rule of the Commission;

18 5. Any state agency, municipality or other political
19 subdivision collecting and remitting fees pursuant to this section
20 may levy a fee up to fifty cents (\$0.50) for every construction
21 permit or renewal permit issued. These monies shall be deposited
22 into an account for the sole use of the state agency, municipality
23 or other political subdivision. The state agency, municipality or
24 other political subdivision shall state the total amount of funds

1 collected and the total number of fees imposed to the State Treasury
2 in the report required by paragraph 4 of this subsection;

3 6. It shall be the responsibility of the state agency,
4 municipality or other political subdivision to account for and
5 ensure the correctness and accuracy of payments made to the State
6 Treasury pursuant to this title;

7 7. Funds collected by a state agency, municipality or other
8 political subdivision and remitted to the State Treasury pursuant to
9 the Oklahoma Uniform Building Code Commission Act shall be deposited
10 in the Oklahoma Uniform Building Code Commission Revolving Fund and
11 shall be used solely for the purposes of the Oklahoma Uniform
12 Building Code Commission Act; and

13 8. Nothing in this act shall prevent the Oklahoma Uniform
14 Building Code Commission from offering incentives for prompt
15 payment.

16 SECTION 5. This act shall become effective November 1, 2025.

17
18 60-1-10787 TKR 01/07/25
19
20
21
22
23
24